

C.C.R.B CASE CLOSING FORM

Investigator assigned: Grant		Team: 6	CCRB#: 9801122	☐ Force ☐ Discourtesy ☒ Abuse ☐ O.L. ☐ Injury
Date of incident: 2/9/98	Time of incident: 10:25 PM	Location of incident: § 87(2)(b)	Pct. of occurrence: 046	Date S.O.L. Expires: 9/1/99
Date reported: 3/6/98	Time reported: 2:33 PM	To whom/where/how reported: By Telephone to Command 046		
Complainant: § 87(2)(b)		Home address:		
Victim(s): Same as Above		Home address:		
Witness(es): § 87(2)(b)		Home address:		
Subject officer(s) (include rank): PO Peter Holness PO Phillip Rivera		Shield: 15764 26894	Tax: 915903 916539	Command: 046 046
Witness officer(s) (include rank): None		Shield:	Tax:	Command:
Allegation(s) by letter: (A) PO Rivera abused his authority by frisking § 87(2)(b) in violation of PG 116-33. (B) PO Rivera abused his authority by searching § 87(2)(b) in violation of PG 116-33. (C) PO Holness abused his authority by searching the car in violation of PG 104-01 (D) PO Holness used excessive force by drawing his gun in violation of PG 104-01				§ 87(2)(g)

Summary

On 2/9/98 at approximately 10:25 PM, § 87(2)(b) was sitting in the front passenger seat of his friend's car. The car was parked in a bus stop on § 87(2)(b) runs in a north-south direction and this car was parked facing south.

PO Holness and PO Rivera were driving in a southerly direction on § 87(2)(b) when they noticed the car parked in a bus stop. The two officers drove a little past the car, and then reversed to stand alongside the parked car. As they stopped parallel to the parked car, PO Rivera, who was driving, said that he saw the passenger throw

something under the seat. PO Holness, who was sitting in the passenger seat of the RMP, did not see anything suspicious.

§ 87(2)(b) said that he did not throw anything under the seat. He further stated that even if he did, it was not possible for the officers to see him, because the car was tinted and there was no street lights above to illuminate the car's interior.

After seeing the alleged suspicious activity, the officers reversed and stopped behind the parked car. They put on their flashing lights and exited their RMP. PO Holness walked over to the passenger side and PO Rivera stood behind the parked car. PO Holness asked § 87(2)(b) to exit the car, and § 87(2)(b) complied. PO Holness frisked § 87(2)(b) and sent him to the back to PO Rivera. PO Rivera then frisked and searched § 87(2)(b) while PO Holness searched the car. Both frisk and search turned up negative.

As PO Holness was completing the search, the owner of the car came out of § 87(2)(b) and gave the officers the required paperwork for the car. § 87(2)(b) also gave PO Rivera his identification. The officers took the paperwork and went back to their RMP. A defective summons (See ENCL 9) was issued to the owner of the car for, "parking in a bus stop."

Notes: The owner of the car was not interviewed for this case. § 87(2)(b) identified the owner as § 87(2)(b) but said that he did not know this gentleman's telephone or address. He promised to call me with this information. § 87(2)(g)

§ 87(2)(b) did not furnish me with any additional information about the driver. I called him on two different occasions. On the second call, he told me that § 87(2)(b) was not interested in being interviewed or in showing me the car.

Analysis

§ 87(2)(g)

§ 87(2)(g)

He testified that he did not search § 87(2)(b) and continued to insist that there was no search. Even after I showed him a copy of the " stop and frisk report" which indicated that there was a search, PO Rivera continued to deny that any search was conducted. I confirmed with PO Rivera that he was the officer who had completed the " stop and frisk report" § 87(2)(g)

§ 87(2)(g)

§ 87(2)(g)

PO Rivera, was the only person who testified that the car was parked in a brightly lit location. § 87(2)(g)

Additionally, PO Rivera said that because the car was parked in a lighted area it was easy to get a clear view of the car's interior. § 87(2)(g)

§ 87(2)(g)

As to whether the car was parked in a lighted area, both PO Holness and § 87(2)(b)

§ 87(2)(b)

testified that the car was parked in an unlighted area. § 87(2)(g)

§ 87(2)(g)

Both officers have this car under surveillance because it is parked in a bus stop in a "drug prone location." PO Rivera, who was the driver of the RMP, slowly drove up to the car. He stopped when his front passenger door was alongside the front bumper of the car in the bus stop. He then reversed, so that his front passenger door was directly alongside the front driver's door of the car in the bus stop. The two cars were now standing parallel to each other. The RMP was in a double parked location, and the complainant's car was parked against the curb. The driver of the RMP was PO Rivera, therefore, he was the officer who was further from the parked car. PO Holness, who was the recorder, was next to the parked car. It was at this point PO Rivera said that he noticed the occupant of the parked car "stiffen up" and appear to throw something under the seat.

PO Holness did not see any activity inside the car. § 87(2)(g)

§ 87(2)(g)

§ 87(2)(g)

§ 87(2)(g)

PG 116-33 states that a person should be frisked if an officer reasonably suspects that he or others are in danger of physical injury. A subsequent search should be conducted if the frisk reveals an object which may be a weapon.

§ 87(2)(g)

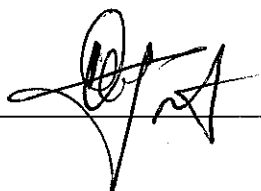
§ 87(2)(g)

Allegations C and D deals with the search of the car by PO Holness. PO Holness, in his interview stated that he did not see any of the suspected activity. Whatever he did was based on information that was given to him by PO Rivera.

§ 87(2)(g)

§ 87(2)(g)

Investigat
or:



Date:



Supervisor

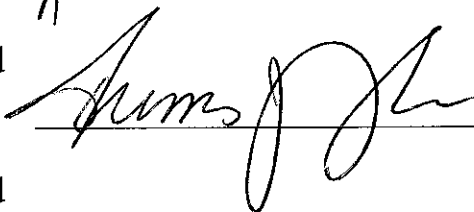
:

AMANDA ZAFIAN

Date: 6/3/98

Reviewed

by:



Date: 6/3/98

Reviewed

by:

Date: